		Cal.App.5th 91, 107; *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 321.) The Provision is modestly substantively unconscionable for requiring arbitration conclude within 120 days of appointing an arbitrator. (See, *Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 736.) Paragraph 9 of the Provision is substantively unconscionable because it limits the pool of arbitrators to those who, like Defendant, have experience as a restaurant or bar owner. (Weber Decl., Ex. 2.) However, this provision in severable. (See Civ. Code, § 1670.5(a); *Gentry v. Superior Court* (2007) 42 Cal.4th 443, 466.) Thus, Plaintiff has shown moderate procedural unconscionability and a modest degree of substantive unconscionability. Therefore, Plaintiff has not shown sufficient unconscionability to void the arbitration provision. Accordingly, Defendant's Motion is granted. The Court will set a post-arbitration status conference for a future date to be determined on July 6, 2026. The parties are ORDERED to file a Status Report 5 days prior.
5	**Loeffler v. Association Lien Services, Inc.** 2016-00873201 Motion to Tax Costs	The Court GRANT's Judgment Debtor, Jennifer Loeffler's Motion to Tax Costs in an amount to be determined after the Court receives further information. Loeffler moves to tax costs on the grounds Trabuco did not credit a payment of $6,000 in the memorandum of costs and interest was miscalculated. Trabuco opposes on the grounds Loeffler's motion is untimely and the calculations are proper. Timeliness of Loeffler's motion. A judgment debtor may file a motion to tax within 10 days after the memorandum of costs is served on the judgment debtor. (Code Civ. Proc., § 685.070, subd. (c).) The memorandum of costs at issue was served on 3/6/26, and Loeffler's motion was filed on 3/12/26. Trabuco contends Loeffler's motion is nevertheless untimely because Loeffler did file motions to tax costs in response to previously filed memoranda of costs despite reflecting the same alleged issue with the interest calculation. Trabuco provides no authority for its contention that failing to object to a prior memorandum of costs precludes a party from timely objecting to any subsequently filed memorandum.

		On its face, the statute refers to a 10-day deadline when a "memorandum of costs is served on the judgment debtor." The memorandum of costs at issue was served on Loeffler on 3/6/26, and she timely filed a motion to tax on 3/12/26. Loeffler contends the memorandum fails to account for a credit of $6,000 from a levy of Loeffler's Bank of America checking accounts. (Rader Decl., ¶ 2.) Trabuco contends Loeffler's principal judgment and interest amounts are not entitled to a credit as the levy was pursuant to a writ of execution issued to enforce a judgment against Loeffler in a related case, Loeffler v. Trabuco Highlands Community Association (Case No. 30-2022 01284907), and not this case. (Hammond Decl., ¶¶ 18-26.) Trabuco attempted to levy Loeffler's Bank of American accounts in this action but was informed that Bank of America identified no leviable funds. (Hammond Decl., ¶¶ 29-32; Poon Decl., ¶ 3.) Accordingly, the Court does not find Loeffler was entitled to the $6,000 credit in this action. The memorandum reflects total interest accrued in the amount of $335,959.98. Loeffler contends there was an overcharge of $65,523.58 as interest should amount to $270,436.40. Loeffler contends interest should run interest should run from the time subsequent costs were added rather than on the entire sum of the judgment, after costs (including attorneys' fees) were subsequently added, from the date of the initial judgment. Loeffler relies on Judicial Council Form No. MC-013-INFO, which provides: "Interest generally accrues from the date the judgment is entered. Interest begins to accrue on the amount of costs added to a judgment from the date ordered by the court or from the date costs are allowed following expiration of the time to object." Trabuco contends Code of Civil Procedure § 685.020 does not distinguish between original judgments and amended judgments. Trabuco further contends Judicial Council Forms are not legal authority. Section 685.020, subdivision (a), provides in part, "interest commences to accrue on a money judgment on the date of entry of the judgment." As such, while section 685.020 references the judgment, it does not specifically reference costs.

		Alternatively, Judicial Council Form No. MC-013-INFO references the general rule that interest run from the date judgment is entered, but also specifically provides interest begins to accrue for "the amount of costs added to a judgment" from the date ordered by the court . . . ." This does not run contrary to section 685.020, but instead provides additional information as to the accrual of interest for costs. Pursuant to Government Code § 68511, "[t]he Judicial Council may prescribe by rule the form and content of forms used in the courts of this state." MC-012, the Memorandum of Costs After Judgment, is a mandatory form, while MC-013-INFO is an optional form provided to assist the judgment creditor in determining the interest and the amount owed. Thus, though not legal authority, MC-013-INFO is provided by the Judicial Council to assist in the filing of the mandatory memorandum of costs. Thus, the Court finds interest begin to accrue on the subsequently added costs from the date ordered by the court or from the date costs. The Court does not find, however, that interest ceases to accrue on previously awarded judgment/costs when subsequent costs are awarded. The Court intends to discuss further with counsel the correct amounts and dates to be used in the recalculation of interest consistent with the Court's findings. After further discussion with counsel on 7/6/26, the Court will order Loeffler to file a supplemental declaration setting forth a corrected calculation of interest pursuant to the Court's findings within five court days of this Order.
6	**Vandyke v. Capistrano Unified School District Facilities Corporation** 2024-01389174 Motion to Tax Costs	Plaintiff Debe VanDyke's Motion to Tax Costs is GRANTED in part and DENIED in part. Plaintiff moves to tax Defendant Orange County Department of Education's (OCDE) memorandum of costs in the amount of $6,407.63. Code of Civil Procedure § 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure § 1033.5 sets forth the specific items of costs which may and may not be recoverable in a civil action. (Code Civ. Proc. § 1033.5, subds. (a), (b).) An item not specifically allowable or specifically prohibited under the statute may nevertheless be recoverable in the court's discretion. (Code Civ. Proc. § 1033.5(c)(4).) All recoverable costs are limited to those that are both "reasonable in amount" and "reasonably necessary to the conduct of